



Notification Waiver Determination

Pine Australia – Evolution Business Systems

Acquisition	Pine Australia Holdings Pty Ltd (Pine Australia) applied for a notification waiver application in respect of its proposed acquisition of 100% of the shares in Evolution Business Systems Pty Ltd (EBS), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 August 2026

Parties to the Acquisition	The acquirer, Pine Australia, supplies enterprise resource planning (ERP) systems consulting, implementation, and resale services to small-to-medium businesses and other enterprise customers across Australia. Pine Australia is part of Evergreen Services Group (Evergreen), which acquires technology services companies globally. Evergreen is a portfolio company of Alpine Investors, a private equity firm headquartered in San Francisco, California. The target, EBS, supplies ERP consulting, implementation, and resale services to small-to-medium businesses, not-for-profits, and other enterprise customers across Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - while there is horizontal overlap between the parties in the supply of ERP consulting, implementation, and resale services in Australia, the parties' combined share of supply of these services is low and the increment arising from the Acquisition would be small - there are alternative providers of ERP consulting, implementation, and resale services in Australia, including a range of large-scale providers and smaller specialist ERP consultancies.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**